

ELECTRONIC AND DIGITAL ENTRY, ACCESS, ALARM, AND SECURITY SYSTEMS ADDENDUM

Addendum Date: _____ ["Management"] as Owner of

as Agent for the Owner of _____

["Property Name"] enters into this Electronic and Digital Entry, Access, Alarm, and Security Systems Addendum to the Rental Contract ["the Lease"] with _____

["Residents"], pertaining to

House / Unit No. _____ located at _____

["Address"]. This addendum is part of the Rental Contract dated _____ ["Date of Lease"].

- 1. Important:** Please read this addendum before signing. This addendum has important information about electronic, digital, and mechanical access, alarm, and security systems and crime that may be committed in or around the property. You cannot assume that any security systems or personnel on the property will prevent crime or guarantee your safety. This addendum requires the Resident to take reasonable steps for protecting his or her safety and security at all times in order to avoid personal injuries or property loss as the result of that crime.
- 2.** The property has certain features, services, and systems that may restrict access, have the effect of reducing unauthorized access, possibly reduce crime, and may appear to provide limited forms of security. Management and the owner have the right at any time to reduce, eliminate, modify, and add other or similar features. Some of the features, services, and systems are:

Courtesy Officers or Patrols

Intrusion Alarm Systems

Pedestrian or Vehicle Access Gates

Perimeter Fencing

Coded Entry Building Doors

Remote access devices to open gates and doors

Other: _____

Other: _____

Other: _____

Other: _____

Such features, services, and systems are not a guarantee of Resident's or Resident's occupants, family, social guests, and invitee's personal safety or security, and they are not a guarantee that Resident or Resident's occupants, family, social guests, and invitee's are safe from crime. Resident must exercise reasonable care for his or her safety at all times to avoid crime. Even properly functioning security procedures, devices, or personnel can be avoided or by-passed by persons intending to commit a crime. Additionally, from time to time such security may malfunction or require repair.

Resident agrees that he or she shall not form an assumption at any time that he or she is safe from crime or that security procedures, devices, or personnel at the property will prevent crime.

Resident acknowledges and agrees that Management has issued the following access devices, codes, cards, or information and instructed Resident on their proper use.

Code or Card for Accessing Pedestrian or Vehicle Access Gates

Code No. _____

Card Nos. _____

Code or Card for Arming or Disarming Intrusion Alarm Systems

Code No. _____

Card Nos. _____

Code or Card for Accessing Building exit and entry doors

Code No. _____

Card Nos. _____

Code or Card for Accessing Building Doors

Code No. _____

Card Nos. _____

Remote Access Device or Clicker for entering Vehicle Access Gates

Remote Access Device to open gates and doors

Other: _____

Other: _____

Other: _____

Other: _____

Resident agrees to return all access cards, clickers, devices, and remotes to Management at the time of vacating the premises or terminating or non-renewing his or her lease. Resident shall pay the following amounts for any access card, clicks, or digital device which is lost or not returned to Management:

\$ _____ per card for each access card

No. of cards issued: _____

\$ _____ per clicker for each access clicker

No. of clickers issued: _____

\$ _____ per device for each digital access device

No. of access devices issued: _____

3. **Owner and Management Make No Representations, Guaranties, Covenants, or Warranties About the Safety of the Property from Crime or Providing Security that Will Prevent Crime.** Resident acknowledges and agrees that neither the Owner nor Management have made any verbal or written representations, guaranties, covenants or warranties, either express or implied, that: a) the property or its entrances, exits, the house, or any portion of the property are safe or free from crime; b) the neighboring properties or neighborhood outside of or around the property are safe or free from crime; or c) security is, has been, or will be provided to or for Resident that will protect Resident or his property from crimes or will prevent crime from occurring in or around the property. Neither the Owner nor Management market, advertise, or make representations that the Resident or Resident's occupants, social guests, visitors, or invitees will be safe or free from crime while they are in, near, at, leaving, or entering any portion of the property. Although the Owner and Management may provide certain forms of security at the property, such security cannot deter or prevent all crimes. Crimes do occur from time to time at or near the property, but neither the Owner nor Management know when or where a crime will occur.
4. **Existence or Absence of Security Procedures, Devices, or Personnel Does Not Create an Assurance of Safety or Crime Prevention.** Resident acknowledges and agrees that the existence, presence, or absence of security procedures, devices, or personnel in the house or at the property do not constitute any kind of implied warranty or representation from the Owner or Management that the Resident will be safe or protected from crime or that such security procedures, devices, or personnel will prevent or deter crime from occurring in the house or around or near the property.
5. **Limitations in the Function of Access Gates and Perimeter Fencing.** Resident acknowledges and agrees that the function of controlled or limited access gates and perimeter fencing around or in portions of the property is limited in its effectiveness as a form of security. If such access gates and fencing are present, their function is to control, limit, and deter access to the property. Resident understands and agrees that fencing, doors, and access gates will not prevent unauthorized entry and crime. Resident understands and acknowledges that other persons at the owner's other rental properties could or may provide other authorized and unauthorized persons entry, access codes, or electronic opening devices that give such persons access to the property. The Owner and Management have no way of knowing when or how persons who are not a resident or occupant will be provided access or whether such persons intend to commit a crime. Resident understands that unauthorized persons can gain access to the house and the property even when security procedures, devices, or personnel are present and functioning.
6. **Security Personnel and Owner or Management Employees Do Not Provide Emergency or Law Enforcement Services.** Resident acknowledges and agrees that: security personnel and Management employees are not employed to provide emergency, medical, security, protection, fire, or police services to Resident or Resident's family, occupants, social guests, visitors, and invitees; the primary function of security personnel, if present, is to observe and report on incidents as directed by the Owner and Management; Owner and Management do not offer or provide any armed or unarmed security personnel that will keep the Resident safe and prevent crimes against Resident or his property; and it is the responsibility of appropriate federal, state, and local law enforcement agencies to protect Resident; respond to Resident's report of a crime; to prevent and deter crime; and to make arrests for violation of the law.
7. **Owner and Management May Discontinue or Change Security Personnel, Devices, or Procedures Without Notice or Liability.** Owner and Management shall have the right at any time, with or without notice, to install, modify or remove any security procedures, devices, or personnel without liability therefore. Any modification or removal of security devices, personnel, or procedures shall not serve as a basis for breach of contract or tort claim against the Owner or Management. Failure or malfunction of security devices, personnel, or procedures to operate properly or prevent crime shall not serve as grounds for abatement of rent or grounds for the Resident to terminate the lease based on an alleged breach of contract. The Resident's obligation to pay rent is independent of the Owner's or Management's duties under the law.
8. **Resident Has a Duty to Exercise Due Care at All Times for His or Her Safety.** Resident acknowledges and agrees that he or she has a duty at all times to exercise due care to protect and provide for his or her own safety and property from the criminal acts of others. Resident understands and agrees that the Owner or Management cannot and do not provide police or law enforcement services. Resident acknowledges and agrees that in the event he or his family, occupants, social guests or invitees are in need of emergency, medical, security, protection, fire, or police services, he or she shall have the duty to contact the appropriate governmental emergency, medical, fire, or law enforcement service or agency.
9. **Intrusion Alarms In Resident's House Do Not Guaranty Resident's Safety from Crime.** An intrusion alarm system in the leased premises of the house, if any, is not a guarantee of Resident's safety from crime. Resident acknowledges and agrees that if such intrusion system was installed by Owner or Management in the house as part of the leased premises that it is Resident's responsibility to establish or set up his or her own monitoring contractor to provide monitoring of the alarm system. The intrusion alarm system is not monitored by the Owner, Management, or a security service provided by the Owner or Management, nor by any law enforcement agency. The intrusion alarm is not connected to any central or monitored system as part of the lease. Neither Owner nor Management shall have any liability for responding or failing to respond to or monitoring any such intrusion alarm system. Neither Owner nor Management shall have any duty to monitor or respond to an intrusion alarm system nor any liability for failure to monitor and respond to an intrusion alarm. Resident agrees that Owner and Management may at any time, either with or without notice to Resident, replace, discontinue, or disconnect any such alarm or intrusion system. Any such change, replacement, modification, discontinuance or suspension of an intrusion alarm system shall not relieve Resident of liability for payment of rent nor shall it excuse Resident from fulfilling the balance of the remaining term of the lease.
10. **Resident Has Inspected or Has Had the Opportunity to Inspect and Investigate the House and Property for Security, Safety, and Crime.** Resident acknowledges and agrees that he or she has inspected or had the opportunity to inspect and investigate the house and property for security, safety, and crime and determined to his or her satisfaction that the security is adequate, satisfactory, and in proper working order unless otherwise noted on the Move-In inspection form or unless otherwise provided in written notice to the Owner or Management.

Resident acknowledges and agrees that any comments noted on the Move-In inspection form are not a written request to repair and that any request to repair must be submitted separately in writing and make a clear request for repair or maintenance. Resident agrees that neither the Owner nor Management shall have any duty to inspect, test, repair, or service door locks or latches, window locks or latches, or intrusion alarm systems inside the lease premises of the house until the Resident has notified the Owner or Management in writing of the need for such repairs or replacement.

- 11. Crime Warning and Limitation of Liability for Crime Is Incorporated by Reference into the Rental Contract.** This addendum shall be incorporated into the Rental Contract between the Resident and Owner and Management and is effective and enforceable regardless of whether this addendum has been separately signed by the parties to said lease agreement. The terms and provisions contained in this addendum shall remain in effect throughout Resident's occupancy at the property, and this addendum shall not be revoked in the event Resident extends the original lease, signs a renewal contract, or signs an entirely new rental contract for continued occupancy or residence at the property.
- 12. Merger of All Prior Statements.** All prior statements, representations or agreements pertaining to security shall be void and unenforceable and are merged herein unless such representation is in writing and signed by all parties to this addendum and the Rental Contract.
- 13. Any Portion of Addendum Found to Be Void or Unenforceable to Be Severed and Remainder Enforced.** If any phrase, sentence, portion, provision, or paragraph of this addendum shall be found or determined to be void or unenforceable under applicable law, then such void or unenforceable phrase, sentence, portion, provision, or paragraph shall be severed, and the balance or remainder of this addendum shall be upheld as valid and enforceable so as to carry out the expressed intent of the parties to this contract. The provisions of this addendum are contractual in nature and not mere recitals. If any phrase, sentence, portion, provision, or paragraph of this addendum is held to be void or unenforceable, the addendum in its entirety shall still be admissible in evidence in any civil lawsuit or trial with appropriate instructions as to effectiveness of the void or unenforceable portion.

Signature of Parties:

Management

Name of Management

By: _____

Signature of Management Representative Name

As: _____ (Job Title)

Residents

Printed Name of Resident: _____ (Resident Signature)

Printed Name of Resident: _____ (Resident Signature)

Printed Name of Resident: _____ (Resident Signature)

Printed Name of Resident: _____ (Resident Signature)

Printed Name of Resident: _____ (Resident Signature)

Printed Name of Resident: _____ (Resident Signature)